UNIT-II

Marriage Under Hindu law

→ Hindu marriage is regarded as a Sacred and eternal union b/w a man & a woman.

→ It is not merely a civil contract but a religious sacrament that unites two souls for the performance of Spiritual and Social duties.

→ According to the ancient hindu texts like Manusmriti & Dharmashastras, marriage is a divine institution, meant for the continuance (or duty) of the family & for performing religious rites:

According to Hindu law (Manusmriti & Dharmashastras) Marriage is not only for physical & emotional Companionship but also for

* Dharma (Religious duty)
* Praja (procreation of children)
* Rati (Sexual pleasure, companionship) and love

Nature of Hindu Marriage

1. Sacramental in nature (పవిత్రమైనది)

→ It is a sacred bond that cannot be broken easily.

2. Permanent union

→ Last for life

3. Religious duty

→ Its necessary to perform certain religious rites.

4. Not merely a contract.

Types of Hindu Marriages

~~Approved forms of Marriage~~

According to Ancient Hindu texts (Manusmriti and Dharma shastras), there are eight forms of marriage (Vivaha)

Out of these, four are approved - prashasta & four are disapproved (aprashasta).

1. (prashasta Marriage) Approved forms of Marriage

1. Brahma Marriage

→ The father gives his daughter to a man of good character and learning, without any expectation of dowry.

→ purely religious and sacramental.

2. Daiva Vivaha (Marriage)-

→ The daughter is married to a priest who performs a Sacrifice (yajna).

3. Aasha

→ Brides father accieves a gift (like a cow) from the bridegroom in exchange for the marriage.

4. Prajapatya

→ Marriage conducted with simple rituals & without dowry & gifts.

Father gives the bride to the groom with a blessing like

May both of you perform your duties together.

II (Apashasta) Disapproved forms of Marriage

5. Asura Vivaha

→ Groom gives money or wealth to the bride's father or family to obtain the girl (Similar to dowry)

2. Gandharva Vivaha

→ Marriage based on mutual love or consent between the man and woman without consent of parents or performance of religious rituals.

3. Rakshasa Vivaha

→ Marriage by force or abduction often against the girls' will.

4 paisacha Vivaha

Marriage by fraud or Seduction

→ Marriage by seducing or molesting a

woman who she is asleep, drunk or unconscious.

Importance of Marriage Under Hind law

1. Religious Importance

→ Hindu Marriage is considered a divine and Sacred bond. rather than a mere contract

→ It is essential for performing Dharma (religious duties) - certain ceremonies like yajnas or shraddha can only be performed by a married man.

→ According to Manusmriti & Vedas states that a man attains salvation (moksha) only if he leads married life and performs his rituals with his wife.

2. Social Importance

→ It provides legitimacy to children and ensures social recognition of couple.

→ It promotes moral and ethical values.

3. Legal Importance

→ Creates legal rights & obligations between Spouses.

provides legitimacy to children and inheritance rights

HMA 1955 regulates marriage provides remedies like divorce, restitution of conjugal rights and judicial seperation etc.

4. Economic Importance

→ Marriage helps in the economic stability of individuals by pooling resources & sharing financial responsibilities.

→ It ensures inheritance and Succession

→ phys psychological and Emotional importance

→ Marriage provides emotional Support and Companionship promoting mental well being.

→ for procreation of children and continuing family Lineage

→ Marriage helps in continuing the family line.

Conditions of Hindu Marriage

Who is a Hindu

The following persons are Hindus, Buddhists, Jainas or sikhs by religion.

(a) Any child legitimate or illegitimate, both of whose parents are Hindus, Buddhists, Jainas or Sikhs by religion;

(b) Any child both of whose parents are Hindus, Buddhists, Jains or Sikhs by religion or one of whose parents is a Hindu, Buddhist, Jain or Sikh by religion and who is brought up as a member of the tribe, community, group or family to which such parent belongs or belonged and

(c) any person who is a convert or reconverted to the Hindu, Jain or Sikh religion.

(2) Notwithstanding anything contained in sub-section (1), nothing contained in this Act apply to the members of any Scheduled tribe within the meaning of clause (25) of Article 366 of the Constitution unless Central Govt by notification in the official gazette otherwise directs.

366 (25) - defines S.T

H.M.A applies (Read the following)

Section 1 & Section 2 of H.M.A 1955

Conditions for a Hindu Marriage

According to Section 5 of H.M.A 1955

a marriage may be Solemnized b/w any two hindus if the following Conditions are fulfilled.

- performing marriage according religious (or) customary rites
- Monogamy
- Neither party has a spouse living at the time of marriage.

Case :- Soola Mudgal Vs. UoI 1995 (SC)

facts :- Hindu men converted to islam to marry again without divorcing their first hindu wives.

Apex Court held that

Such marriage is void under Section 11

of the Hindu Marriage Act.

→ husband is guilty of bigamy u/s 494 of ipc & 82 BNSS Marrying again during life time of husband or wife (except — Void, 7 years

7yrs & fine

punishment :-

principle Conversion to islam just to marry again does not dissolve the

495 — Conceals the fact of former marry

2. Un Soundness

82(2) — 10yrs & fine.

(ii) At the time of marriage neither party :-

(a) is incapable of giving a valid consent in consequence of unsoundness of mind.

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent unfit for marriage & procreation of children or

(c) has been subject to repeated occurrent attacks of insanity (mental illness)

Case Anima Roy V Parabadh Mohan Roy
1969 Calcutta HC

husband want to annull the marriage claiming that wife was mentally unsound

(suffering from Schizophrenia) at the time of marriage. (chronic psychiatric disorder)

He argued that she was incapable of giving Valid Consent and unfit for marital life

Calcutta H.C held that

→ Mental disorder must be of such a kind or extent that person is incapable of understanding the nature of marriage & le.

→ Minor or curable mental illness doesnot make the marriage voidable

In this case it was found that the wife was capable of understanding marital obligations — so the marriage was held valid.

R. Lakshmi Narayan V. Santhi (2001) SC

SC held that mere mental disorder is not enough. It must be proved that the person was unfit for marriage & procreation of children

Alka sharma Vs Abhinesh Chandra sharma

Mental disorder of such nature that parties are unfit for marriage & procreation of children.

(5)(V) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage b/w the two.

Case

3 Minimum Age of marriage

Bridegroom - 21 years

Bride - 18 years

at the time of marriage.

Case :- Pinnimti Venkataramana Vs ~~State~~ of AP 1977

Sec 5 (iii)

~~facts~~

The petitioner were convicted for offence u/s 494 IPC now Sec bigamy because they contracted a second marriage.

They defended that the first marriage was a child marriage so the first marriage was void ab initio as there was not first marriage and consequently no bigamy.

referring to the earlier A.P decision in Saramma V. G Ganapatulu which held that a child marriage was void-ab-initio

decision

(full bench)

A.P HC overruled ealier decision in P.A Saramma V. G. Ganapatulu (divisional bench)

The full Bench held that a child marriage is not Void-ab-initio under H.M.A it subsists until set aside & parties retain civil consequences.

(iv) parties are not within the degrees of prohibited relationship unless the custom of usage governs and permits the marriage between the two. 2(q)

~~Smt Lila W state of Rajasthan 1991~~

(v) the parties are not Sapindas of each other, unless the custom (or) usage governs or permits the marriage between the two.

Sage Vashista and his wife Arundhati

Arundhati Nakshatram

Ceremonies of Marriage.

Marriage under hindu law is a sacred

sibal and must be performed according

to traditional ceremonies

According to section 7 of Hindu Marriage

Act 1955

7(1) A Hindu marriage may be solemnized

in accordance with customary rites &

ceremonies of either party thereto.

7(2) Where such rites & ceremonies

include saptapadi (that is taking of

seven steps by the bride groom & bride

jointly before the sacred fire), the

marriage becomes complete & binding

when the seventh step is taken.

Some of the important traditional ceremonies

1. Saptapadi
2. Kanyadaan (giving away of the bride)
(by her father or guardian)
3. Mangalsutra and Sindoor (Tali ceremony)
In South India, tying of sacred thread
(Tali) in North India, application of Sindoor
& wearing of mangalsutra
4. Exchange of garlands

405
415
Cases:- bigamy, cheating) criminal breach of trust

Dr. A. N Mukherjee Vs. State 1969 Allahabad H.C
Harbans kaur V State
he was prosecuted for bigamy. Court found
that he performed essential ceremonies of
marriage three diff times.

Cheating:- deceiving any person fraudulently,
dishonestly inducing to deliver property
to do / omit to do any

firstly they exchanged garland

later Moon ceremony and

thirdly they performed other kind of

ceremonies before Guru Granth Sahib.

→ Any of these ceremonies in such

~~form~~ is neither accepted in the customs

of bride or groom so, the marriage

was held invalid and he was not

liable for bigamy.

in 2017

HC stated putting Sindoor on forehead

and tying the mangalsutra along

with physical relationship will not

Constitute Valid Marriage unless essential

ceremonies performed

Priya Bala Ghosh Vs Suresh Chandra Ghosh 1971 SC

facts wife priya Bala Ghosh filed a criminal case against her husband Suresh C.G alleging that he had married another woman while their first marriage was still subsisting

She charged him for bigamy

Husband admitted the ceremony which had taken place with another woman, but he denied that it was a valid Hindu marg

He claimed that the essential religious ceremonies required under hind law such as Saptapadi or Homa were not performed

SC held that

To prove the offence of bigamy u/s 494 of IPC, it must establish that second marg is a valid marg accordg to hindu law

According to Sec 7 it is valid only if it is solemnized according to the custom -ary rites & ceremonies of either party

In this case there is no proof that the essential ceremonies were performed during second marriage

Therefore, the alleged second marg was not valid & consequently, no offence of bigamy was committed

Registration of Hindu Marriage

While traditional ceremonies validate a Hindu marriage registration is not ~~mandatory~~ but highly recommended for legal proof

Why a marriage to be Registered

1. Legal proof

Helps in case of disputes, divorce, inheritance claims.

2. protects women's Rights

helps in claiming maintenance, property rights & protection from bigamy.

3. Needed for official documents

passport, visa, bank accounts

4. Facilitates legal Benefits

pensions, Social Security schemes, joint bank accounts etc

5. Easier proof in Court

Courts accept a marriage certificate as prima facie evidence of marriage

Reduces need for witnesses or affidavit in matrimonial disputes

6. for government records

⇒ To facilitate proof of a Hindu marriage state government frame rules & regulations regarding the registration of marriage.

Sub registrar - If marriage within 5 years

Registrar - After 5 years.

Steps for Registration

1) parties must submit an applicat" in prescribed form at local marriage registrar's office

2) Submit required documents

(i) proof of identity (Adhar, PAN card etc)

(ii) Proof of age (Birth or SSC certificate)

(iii) Wedding invication card or any affidavit Confirming marriage.

(iv) photographs of marriage ceremony Capturing both husband & wife

(v) Residential proof

(vi) Witnesses (at least two)

3) Verification (Registrar may Verify the documents & cross check the witness

4) Registration

Registrar issues a marriage certificat

which is Conclusive proof of marriage

Case Seema Vs Ashwani kumar 2006 SC

mandated

SC held that Compulsory registration of all marriages for Indian citizens, regardless of religion

Primary objective was to provide a legal document as conclusive proof of a marital relationship, thereby safeguarding the vulnerable parties, especially women & children in matrimonial disputes:

Monogamy

Monogamy means a system of marriage in which a person is allowed to have only one spouse (Husband or wife) at a time.

→ It is the opposite of polygamy

polygamy →

polyandry →

→ Under HMA, 1955 monogamy is one of the essential condition for a valid marriage.

According to Sec 5(i) of the HMA, 1955

"A marriage may be solemnized between any two hinds if neither party has a spouse living at the time of the marriage.

This means that at the time of marriage

* Both the bridge and bridegroom must be unmarried, divorced or widowed and

* They should not have a living spouse

⇒ If a person marries again during the lifetime of his or her spouse, the second marriage is void.

Effect

A second marriage during the lifetime of the spouse is void ab initio (void from the begining

It has no legal effect and not recognised by law:

Criminal Consequence Section 17 of HMA makes Bigamy is an offence of bigamy punishable offence under Section 495 of IPC 82(1) of BNSS

Concealment of former marriage with whom subsequent marriage is contracted is an offence U/S 496 of IPC 82(2) of BNSS

→ 495 (or) 82(1) of BNS punishment is imprisonment which may extend to 7yrs & fine
IPC
496 (or) 82(2) " 10yrs & fine.

Smt Yamunabai Anantrao Adhav V Anantrao Shivram Adhav (1988) SC

facts:- Yamunabai married Anantrao in 1974 according to Hindu rites.

After marriage, she came to know that Anantrao already had a legally wedded wife living at the time of marriage.

she then filed a petition under section 125 Cr.p.c claiming, stating that she was his wife.

→ The husband denied the daim, saying that since his first marriage was subsisting his second marriage with yamunabai was void under section 11 of the HMA, 1955

→ the lower court granted maintenance, but the Sessions court and high court reversed the order, saying she was not a legally wedded wife

→ On appeal, the SC upheld the High Courts decision.

Held SC held that since the marriage was void-ab-initio, Yamunabai was not a wife within the meaning of Sec 125 Cop.c or Section 25 of HMA.

Therefore she was not entitled to maintenance.

125 Crpc deals with Maintenance to wife children/ parents

Which is now replaced with BNSS 144

So now

purpose of Monogamy Its object

1. To uphold the sanctity and stability of Marriage

Marriage under Hindu law is considered a Sacrament, not merely a Contract.

It is meant to be a life long union of one man & woman for performance of religious and social duties

Allowing multiple spouses would destroy the Spiritual sanctity and emotional stability of this sacred bond

2. To promote gender equality

Historically, Hindu men were allowed to have multiple wives, while women could not have more than one husband.

This created gender-based inequality and Social injustice.

By enforcing monogamy, the Hindu Marriage Act established equal marital rights for both husband & wife.

3. To prevent Exploitation and injustice to women

In polygamy, wives often faced emotional neglect, financial hardship and Social humiliation

Monogamy ensures

Economic and emotional Security of women.

Protection of their status, dignity and rights within the family.

4 To protect family Harmony and welfare of children

Multiple marriage cause conflicts and Inheritance disputes.

Monogamy ensures stable family structure and emotional Security for children

It reduces disputes over legitimacy, succession and property.

5. To prevent Bigamy and Related Social evils

To deter men and women from entering multiple marriages.

Avoids fraudulent marital relationships.

So, the purpose of monogamy is moral Social and spiritual reform ensuring that marriage remains a faithful, and Sacred union b/w one man and one woman.

Polygamy

Means a man having more than one wife at the same time.

In ancient hindu society, polygamy was permitted especially among kings (king dasrattha had 3 wives, Ramayanam)

But HMA, 1955 prohibits polygamy completely.

It introduced monogamy as a strict rule for all Hindus. (According to section 5(i)

If a person marries again while his / her spouse is still alive, such marriage is Void ab initio (invalid from the beginning)

It has no legal effect.

punishment for bigamy

494 & 495 of IPC

82(1) & 82(2) of BNSS.

polyandry

Woman having more than one husband at the same time.

Cases:-

1 Bhaurao Shankar Lokhande V. State of Maharashtra 1965 SC

facts:- the accused married another woman during the lifetime of his first wife. However, he argued that the second marriage was not properly solemnized according to Hindu rites.

SC held that To constitute bigamy under Section 494 IPC the second marriage must be a valid marriage i-e it must be solemnized with essential hindu ceremonies

Sarla Mudgal Vs UoI (1995 SC)

Lily Thomas V UoI (2000 SC)

SC held that conversion to Islam only to marry again while the first marriage subsists is not valid.

The Second marriage is void, & the husband is liable for bigamy U/s 494 IPC

principle - A Hindu husband cannot escape liability for bigamy by converting to another religion.

In Lily Thomas SC reaffirmed that Conversion doesn't dissolve the first marriage.

The second marriage, even after conversion, is void & the husband commits bigamy.

Section 11 :-

According to section 11 marriage is void if it violates Section 5(i)

this requires no decree to declare it void - it is void ab initio.

Section 17

Bigamy is a criminal offence

→ Void

→ And punishable u/s 494 & 495 IPC 7yrs & fine 10yrs & fine.

82(1) & 82(2)

Conditions

first marriage is valid

first spouse is alive

Second marriage is solemnised.

Why polygamy is prohibited

To ensure equality b/w husband & wife.

To prevent exploitat" of women

To bring uniformity in marriage laws.

for social order & stability.

Recent trends in institution of marriage

1. Shift from Sacrament to Contract

A Hindu marriage is considered as a Sacrament

In case of Tikait Mumohinti V Basant kumar

Calcutta HC affirmed that Hindu marriage is a Sacrament, a sacred & indissoluble union rather than a simple contract.

In the Case of Bhagwanti Saran Singh Vs Parameshwari Nandar Singh

the court hold that Hindu Marriage is not only a Sacrament but also a Contract.

Anjana Dasi Vs Ghose

Calcutta H.c held that Suits relating to marriage must be treated as a civil Contract

Trends in Marriage

Live in relationships recognized as marriage

Its an arrangement where by two people decide to live together on a long term or permanent basis in an emotionally or sexually intimate relationship.

→ Now in India live in relations are now legal.

Under Section 16 of Hindu Marriage Act children born out of such relationships are considered to be legitimate & have right to property.

Cases on live in relationship

1. Indra Sarma Vs V.K.V Sarma 2014 SC

↓ Appellant

↓ Respondent

they came to a Pola for adultership from

about 15 years

The Appellant left home, job and became

financially dependent on respondent

The Respondent was already married and

had a wife and children

Appellant knew this, despite they continue

the live in relationship

After many years respondent abandon Both.

Sunita she had to income, to support

or place to stay.

Therefore she filed a case under PWDVA

Protection Of Women From Domestic Violence

Act, 2005 claiming → Maintenance

DVA

→ Right to Residence

→ Protection order.

she argued that their Live live in relationship was a relationship in the nature of marriage under Section 2(f) of DV Act 2005.

Trail court & High Court dismissed her claim. Appeal → to SC.

SC rejected her claim held that such a relationship does not qualify as a relationship in the nature of marriage because

The man was already married.

Relationship was knowingly adulterous

SC also held that not every live in relation is to be a "relationship in the nature of marriage"

A Relationship must have

→ long period of Cohabition

→ Social Recognition

→ shared house hold

→ financial & emotional support

→ Intention to live as spouses

2. D Velusamy V. D patchaiammal (2019)

SC held that for a live-in relationship to be considered as marriage-like the couple must

* Live together for a reasonably long period

Be of legal age.

must voluntary present themselves socially

as husband & wife.

⇒ If one partner is already married, the

relationship cannot be recognised as valid.

3. Chanmaniya V. Virendra Kumar Singh

Kushwaha (2011) SC

SC recomended that women in live in

relation should get maintenance similar to

Section 125 Cap.c Now BNSS

presumption of marriage can arise when

a man and a woman live together

for a long time.

4. Babai Prasad V. DY Director Consolidation (1978) SC

Director of Consolidation (Highest authority who supervises and controls the entire process of Land Consolidation)

→ The case originated from a Land dispute under the U.P. Consolidation of Holdings Act, 1953.

↓

Babai → It is a land law used to reorganise fragmented agricultural land. Settle title disputes.

Decide who is the rightful owner / heir

Update land records.

So any dispute about land ownership during consolidation goes to Consolidation officer.

Dispute was

Who is the rightful heir to the agricultural land?

To decide that, authorities needed to determine

Whether Bodai Prasad was legitimate

Whether his parents had a Valid marriage

So, the issue of marriage came up only to decide inheritance.

DY. Director held

" Marriage of his parents Pn not proved

Bodai Prasad is not a legal heir."

Bodai prasad appealed to SC & challenged H.C's decision

As Couple lived together for 50 years

SC held that this long Cohabitation

raises strong presumption of a valid marriage

So he is entitled to the land.

5. Tulsa V Durghatiya (2008) SC

children born from long cohabition are legitimate under Section 16 Hindu Marriage Act, 1955

Long cohabitation gives rise to presumption of a valid marriage

6. Lata Singh V. state of U.P (2006)

Live in relationships are not illegal

Adults are free to live together outside marriage.

7. S. Khusboo V Kanniammal (2010) SC

Live in relationship is part of right to life and personal liberty under Article 21

Its not an offence.

8. Recognition of Marital break down

Mutual Consent

Concept of irretrievable breakdow of Marriage

etc

9. Reduced ritual requirements

Courts focused on Valid Consent rather than elaborate rituals.

10. Increasing Gender equality in marriage

Equal rights to divorce, maintenance.

11. Decline in child marriage & decay

Protection of children from child marriage Act 2006.

12. change in age of marriage

Govt proposed raising the minimum legal age of marriage for women

from 18 to 21 years as a part of Prohibition of Child Marriage Amendment Bill, 2021 to promote gender equality and allowing women more time for education and career development (Bill is under consideration).

change in Concepts of endogamy and exogamy!-

Endogamy!- Marrying within specific group or cast etc

Exogamy!- Marrying outside ones social group. (gotra etc)

Inter caste marriage which is allowed under the Special Marriage Act, 1954

Same Sex Marriage (decriminalisation of Same Sex relationships in 2018)

In Supriyo Vs UoI (2023)

SC Held = ✗ that Same sex marriage is not legally recognised in India

→ No right to marry under Special Marriage Act for same-sex couples

→ Courts cannot rewrite SMA to include LGBTQ+ Unions

Even though marriage is not allowed the court reaffirmed that they have right to

→ choose their partner

→ Cohabit / Live in relation

→ Be protected from harassment

→ Dignity, privacy and non discrimination

→ Protection under Domestic Violence Act (in Some contexts)

Solegamy

Marrying one self

A person conducts a marriage ceremony with themselves.

No legal validity, No legal duties under Hindu Marriage Act or any other statute

Conclusion

Marriage has transitioned from a Sacred indissoluble union to Contract.

While it continues to retain its traditional values of Sacrament, Companionship and family stability social and legal developments have reshaped its nature and scope.

UNIT - III

Restitution of Conjugal R

1) Smt Sooj Rani V

⇒ Married in 1975.

Wife alleged he
her out of their
(she left matrim
Wife's → filed petitio

Conjugal rights against

→ Husband subsection
Contested the petitio
Court to grant the

→ A year after the
husband subsection
for divorce under Sec